

parents. Looking both to the language and to the purpose of this instrument, I see nothing which in any way imports that the portions were not intended to vest during the lives of the parents, and to adopt the period of the death as the time of vesting would be to deprive the provision of that certainty which it must, I think, fairly be taken to have been the object of the settlement to secure. It would render the interests of the children contingent upon their surviving their parents, and deprive them of the means of making any certain provisions for their families during the whole of their parents' lives. This is a result against which the Court has struggled and successfully struggled in many cases, and I think therefore that we should not be justified in adopting this period as the time of vesting, in the absence of [*399] anything on the face of the *instrument indicating that it was so intended. Between the other two periods it is not as I have said necessary for us to decide, but I think it right to state that I lean to the opinion, that in this particular case the true period of vesting was at twenty-one, or as to the daughters on marriage. The consequence of holding the portions to vest at the birth would be that the shares of children dying in early infancy would go to the parent, thus contravening the purpose of the settlement, by giving to the father what was intended for the children, and the Court in these cases seems to have regarded rather the purpose than the words of the settlement"(a).

5. **General rule.**—Upon the authority of these and other cases it may be considered as established, that unless there be something special in the instrument (b), the portions of the younger children, whether they survive the tenant for life or not, will not vest in sons unless they attain twenty-one, or in daughters unless they attain twenty-one or marry (c); and that the shares of sons who attain twenty-one and of daughters who attain twenty-one or marry, will

(a) The whole of the judgment well deserves a perusal.

(b) See *Earl Rivers v. Earl Derby*, 2 Vern. 72.

(c) *Bruen v. Bruen*, 2 Vern. 439; S. C. Pr. Ch. 195; *Edgeworth v. Edgeworth*, Beat. 328; *Warr v. Warr*, Pr. Ch. 213; *Hinchinbroke v. Seymour*, 1